

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBER: 04-030
	)	
EDITH A. LITTLE,	)	SETTLEMENT AGREEMENT
	)	AND FINAL ORDER
Respondent.	)	

COME NOW the Iowa Board of Social Work Examiners ("Board") and Edith A. Little ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following Settlement Agreement and Final Order of the contested case currently on file.

1. Respondent is licensed to practice as an independent social worker in the state of Iowa. Respondent was issued license number 01225 to practice as a social worker in the state of Iowa on July 1, 1996.

2. Respondent's current address as reported to the Board is 781 W. Walcott Road Lot 87, Walcott, IA, 52773.

3. The Board has jurisdiction of the parties and the subject matter.

4. A Notice of Hearing and Statement of Matters Asserted was filed against the Respondent on November 13, 2006, and was scheduled for hearing on February 12, 2007, and continued to August 13, 2007, upon request of Respondent. The August 13, 2007, hearing date was continued upon request of the State pending further order of the Board.

5. Execution of this Settlement Agreement and Final Order constitutes the resolution of this contested case. Respondent has a right to a hearing on the charges,

but waives her right to hearing and all attendant rights, including the right to appeal, by freely and voluntarily agreeing to this Settlement Agreement and Final Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following contested case hearing.

6. Respondent is freely and voluntarily entering into this Settlement Agreement and Final Order, and she agrees that the State's counsel may present this agreement to the Board.

7. This agreement is subject to approval of the Board. If the Board approves this agreement, it becomes the final disposition of this matter. If the Board fails to approve this agreement, it shall be of no force or effect to either party.

8. This agreement shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

9. This Settlement Agreement and Final Order and the Statement of Matters Asserted become public records available for inspection and copying upon execution of this agreement in accordance with the requirements of Iowa Code Chapters 22 and 272C. The Notice of Hearing is also a public record which became available for inspection and copying the date it was filed in accordance with the requirements of Chapters 17A, 22, and 272C.

10. The Board's approval of this agreement shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

11. Respondent's license shall be placed on probation for a period of two (2) years, effective March 13, 2008, to March 13, 2010, subject to the following terms and conditions:

a. Respondent shall remit to the Board a civil penalty in the amount of five hundred dollars (\$ 500.00) made payable to the Treasurer, State of Iowa, within ninety (90) days of the date of this agreement.

b. Respondent shall bill only for services which have been provided. Respondent shall maintain sufficient, timely, and accurate documentation in client records which reflects the client's contact with Respondent and the services provided. Respondent shall utilize the "SOAP" charting method in preparing client records. All client case notes shall include: (1) subjective information; (2) objective data; (3) assessment or diagnosis; (4) and treatment plan, including any revisions to the assessment, diagnosis, or plan made during the course of treatment. All case notes shall be legibly written or typed.

c. Respondent shall store and retain all client records in accordance with state and federal statutes, rules, and regulations, and within the guidelines of Respondent's employer.

d. Respondent shall, within thirty (30) days of the date of this agreement, submit a written plan for supervision to the Board for its approval. The plan shall include the names and curriculum vitae of two proposed supervisors. The proposed supervisors shall be licensed independent social workers, one of whom will be selected by the Board to serve as a practice supervisor for Respondent. The approved

supervisor will be provided a copy of the Notice of Hearing and Statement of Matters Asserted, the investigative file, and this agreement. The plan of supervision shall include a plan for the practice supervisor to review a random selection of Respondent's appointment records, billing records, and client case records to ensure that Respondent is complying with paragraph 11 of this agreement. The supervisor shall provide quarterly written reports to the Board indicating the Respondent's compliance or lack of compliance. All costs associated with the supervision shall be the responsibility of Respondent.

e. Respondent shall attend ten (10) hours of continuing education in the area of record keeping within the period of probation. Such hours shall be in addition to the standard continuing education renewal requirements. Prior to attending the continuing education, the Respondent shall submit the name of the course(s), the course instructors, and the course content to the Board for its approval.

f. Respondent shall make a personal appearance before the Board upon request. The Respondent shall be given reasonable notice of the date, time, and place for appearance.

g. Respondent shall obey all federal, state, and local statutes and regulations governing the practice of social work.

h. Respondent shall notify the Board of any change in address within one week of said change.

i. Upon full compliance with the terms and conditions for probation set forth in this Settlement Agreement and Final Order, the Respondent's probation shall be terminated.

12. In the event the Respondent violates or fails to comply with any of the terms or provisions of this Settlement Agreement and Final Order, the Board may initiate appropriate action to revoke or suspend the Respondent's license or to impose other licensee discipline as authorized by Iowa Code section 272C.3(2)(a).

This settlement agreement and final order is approved by the board on July 7, 2008.